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CASE #	CASE NAME	HEARING NAME
CVRI2504876	DUNLAP-MORENO VS SAN JACINTO UNIFIED SCHOOL DISTRICT	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

Summary of Ruling: The Court overrules the general and special demurrer entirely. Generally, the FAC identifies sufficient statutory bases for each challenged cause of action, including several statutes incorporated by reference that Defendant does not address in its motion. Defendant is ordered to answer within 15 days.

FACTUAL / PROCEDURAL CONTEXT

On 8/11/2025, Logan Dunlap-Moreno (“Plaintiff”) filed a complaint against San Jacinto Unified School District (“Defendant”). The complaint asserts the following causes of action: (1) negligence; (2) negligent supervision and failure to protect; (3) failure to provide a safe educational environment; (4) violation of statutory duties; and (5) negligent infliction of emotional distress. The complaint states that on 11/28/2023, Plaintiff was physically attacked by another student in the presence of school staff. (Complaint, ¶ 6.) Generally, the complaint seeks to impose liability against Defendant for allowing the assault to happen on school premises and not doing anything to intervene.

On 3/26/2026, Plaintiff filed the operative first amended complaint (“FAC”) after the court sustained Defendant’s demurrer. The FAC adds allegations regarding statutory liability and mandatory duties allegedly breached by Defendant.

Now, Defendant demurs to first, third, fourth, and fifth causes of action on the grounds that each it fail to state facts sufficient and are uncertain. Defendant argues that the first and fifth causes of action are duplicative and common law claims are barred against public entities. Defendant argues the third cause of action, based upon Education Code §§ 32282, 32286, and 234.1 do not provide the basis for a valid claim against Defendant.

In opposition, Plaintiff argues the FAC and each of its causes of action properly state statutory bases for liability against a public entity.

In reply, Defendant restates the arguments from the moving papers.

ANALYSIS

A. Meet & Confer Requirement

CCP § 430.41 requires a meet and confer process via **phone or in person** before filing a demurrer or motion to strike five days before the responsive pleading is

due. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (CCP § 430.41(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (CCP § 430.41(a)(3).)

Here, Defendant satisfied the meet and confer requirement via telephonic meet and confer. (Declaration of Anthony Javier, ¶ 4.)

B. General Demurrer – Merits

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 606.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

i. First and Fifth Causes of Action

As to the first and fifth causes of action, Defendant argues that each fails to identify a viable statute that creates a duty or authorizes liability against Defendant as a public entity. Defendant argues that Government Code § 815.2 is a “derivative liability” statute and that Civil Code § 1708 does not create an independent statutory duty.

“Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions.” (*Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832.) Unless provided by statute, a public entity is not liable for an injury. (Gov. Code § 815(a).) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his or her employment if the act or omission would have given rise to a cause of action against the employee, unless the employee is immune. (Gov. Code § 815.2.) There is no common law tort liability for public entities—only statutory. (*Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442.) To state a cause of action against a government entity, every fact essential to the existence of statutory liability must be pled with particularity. (See *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

The first cause of action is for negligence and the second cause of action is for negligent infliction of emotional distress. Defendant's demurrer attacks Plaintiff's reliance on Civil Code § 1708 and Government Code § 815.2. Defendant entirely ignores that both causes of action also reference Government Code § 820 which states that a public employee is liable for injury caused by his act or omission to the same extent as a private person. In conjunction with Government Code § 815.2, which states that a public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would have given rise to a cause of action against the employee.

Here, the allegations allege that Defendant is liable via Government Code §§ 815.2 **and** 820 based on the allegations that Mr. Perez was negligent in failing to supervise the hallways of the school or intervene in the physical assault. (FAC, ¶ 50.) This is sufficient for pleading purposes. Additionally, the FAC identifies liability under Education Code § 234.1 which requires a school policy that "...if school personnel witness an act of...bullying, they shall take immediate steps to intervene when safe to do so." (FAC, ¶ 14.) While this allegation is not specifically stated under the headings for the first or fifth causes of action, each cause of action incorporate by reference the entire FAC.

Defendant's argument that a public entity cannot be liable for common law torts ignores the fact that there is such liability if based on a statute. As stated above, the FAC now adequately identifies statutory liability for Defendant based on the alleged acts and omissions of its employee, Mr. Perez.

Finally, Defendant's argument that the first and fifth causes of action are subject to demurrer for being duplicative of the second cause of action is without merit. A demurrer is properly sustained as to a duplicative cause of action "which adds nothing to the complaint by way of fact or theory." (*Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1135.) But here, the first, second, and fifth causes of action (for negligent, negligent supervision, and negligent infliction of emotional distress, respectively) are sufficiently distinct that they each add something distinct to the FAC. The first and fifth causes of action are not subject to demurrer due to being duplicative of the second cause of action.

For these reasons, the court overrules the demurrer to the first and fifth causes of action.

ii. *Third Cause of Action*

The third cause of action is for breach of mandatory duties. It cites to Government Code § 815.6 and Education Code §§ 32282, 32286, and 234.1. Defendant argues that the cited statutes do not impose a mandatory duty on Defendant, as a school district.

Government Code § 815.6 subjects a public entity to liability for a breach of a mandatory duty absent an exercise of reasonable diligence to discharge the duty. "First and foremost, application of section 815.6 requires that the enactment at issue

be *obligatory*, rather than merely discretionary or permissive, in its directions to the public entity; it must *require*, rather than merely authorize or permit, that a particular action be taken or not taken. [Citation.] It is not enough that the public entity or officer have been under an obligation to perform a function if the function itself involves the exercise of discretion. [Citation.] [Citation.] Courts have construed this first prong rather strictly, finding a mandatory duty only if the enactment “affirmatively imposes the duty and provides implementing guidelines.” (*Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 898.)

Unlike with the original complaint, the FAC now directly alleges liability under Government Code § 815.6. As with the section above, Defendant ignores several statutory references in the FAC and the fact that each cause of action incorporates the entire pleading by reference. Not only is Education Code § 234.1 applicable again her, but also § 44807, which sets forth monitoring and supervising requirements for teachers. (FAC, ¶ 12.)

In determining whether complaint is sufficient, as against demurrer, on ground that it does not state facts sufficient to constitute a cause of action, if it appears that plaintiff is entitled to any relief against defendant, the complaint will survive the demurrer, even if the facts may not be clearly stated or though plaintiff may demand relief to which he is not entitled under facts alleged. (*Augustine v. Trucco* (1954) 124 Cal.App.2d 229, 237.) In fact, it is error for trial court to sustain demurrer when plaintiff has stated cause of action under any possible legal theory. (*Howard Jarvis Taxpayers' Assn. v. Board of Supervisors* (1996) 41 Cal.App.4th 1363, 1372.) Therefore, because the third cause of action contains allegations of proper statutory bases not raised in Defendant's demurrer, the issue of whether the statutes included in Defendant's demurrer regarding the Third Cause of Action impose mandatory duties is moot at the pleading stage.

The court overrules the demurrer to the third cause of action.

iii. Fourth Cause of Action

The fourth cause of action is for dangerous condition of public property. Defendant argues that this cause of action is barred due to a failure to comply with the Government Claims Act as Plaintiff's government tort claim makes no mention of a theory based on a dangerous condition of public property.

Plaintiff's government tort claim is not attached to the FAC nor does Defendant include the tort claim as an exhibit along with a request for judicial notice. Therefore, under this argument, it cannot be said that the FAC is subject to demurrer because the defect does not appear within the four corners of the pleading or evidence of which the court took judicial notice.

As an additional issue, though not raised by Defendant, a cause of action for “dangerous condition of public property” was not a part of the original complaint. When a demurrer is sustained with leave to amend, the leave must be construed as permission to the pleader to amend the causes of action to which the demurrer has

been sustained, not add entirely new causes of action. (*Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015; *Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456.) But addition of a new cause of action may be proper when it “directly responds to the court’s reason for sustaining the earlier demurrer.” (*Patrick, supra*, 167 Cal.App.4th at 1015 [after demurer sustained for plaintiff’s apparent lack of standing on shareholder claims, complaint amended to add claim for declaratory relief to establish plaintiff’s community property interest in shareholdings].) The court sustained Defendant’s demurrer to the original complaint’s cause of action for “failure to provide a safe education environment” as it was based on California Constitution, Article 1, § 28(f)(1) which did not provide a private cause of action. Here, Plaintiff changed the title of the cause of action to dangerous condition of public property and cites Government Code § 835 as the statutory basis for liability. In ruling upon demurrers, courts consider whether any cause of action has been alleged sufficiently, notwithstanding that a cause of action is labeled otherwise. (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.)

While the title of the cause of action changed, the substance of the allegations are similar – that is, Defendant failed to ensure a safe environment free from bullying and physical violence. The difference is the addition of Government Code § 835 as the basis for liability, which is a direct response to the court’s reason for sustaining the earlier demurrer.

For these reasons, the court overrules the demurrer as to the fourth cause of action.

C. Special Demurrer for Uncertainty – Merits

Defendant also argues that each cause of action is uncertain. Demurrers for uncertainty are generally disfavored. (*Chen v. Berenjian* (2019) 245 Cal.App.5th 811.) To that end, demurrers for uncertainty will only be sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him; or where the pleading is so incomprehensible that a defendant cannot reasonably respond. (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616; *Mahan v. Charles W. Chan Ins. Agency, Inc.* (2017) 14 Cal.App.5th 841, 848, fn. 3.) Demurrers for uncertainty are to be overruled when addressed to inconsequential matters, the facts are within the knowledge of the defendant or ascertainable in discovery, or not dispositive of one or more causes of action. (*Khoury, supra*, at p. 616.)

First, the court previously overruled Defendant’s first demurrer on uncertainty grounds. There is nothing in the FAC nor in Defendant’s motion that supports renewing said challenge. Notwithstanding the prior ruling, none of the challenged causes of action are so uncertain that Defendant cannot reasonably determine the general crux of the allegations. The causes of action are not so incomprehensible that Defendant cannot respond.

The court overrules the special demurrer for uncertainty under CCP § 430.10(f). The Court overrules the general and special demurrer entirely. Generally, the FAC identifies sufficient statutory bases for each challenged cause of action, including

several statutes incorporated by reference that Defendant does not address in its motion. Defendant is ordered to answer within 15 days.

6.

CASE #	CASE NAME	HEARING NAME
CVSW2400229	THOMAS VS HARBOR FREIGHT TOOLS USA, INC.	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT

Tentative Ruling:

Summary of Ruling:

The Court continues the motion for summary judgment and trial to allow Plaintiff to retain new counsel. The Court and parties will confer on June 9, 2026 to select the new dates.

Factual/Procedural Context

This products liability action arises from injuries sustained by Plaintiff Jeffrey Jacob Thomas ("Plaintiff") after attempting to store a Haul-Master heavy duty folding trailer manufactured, designed, assembled, let, or sold by Defendant Harbor Freight Tools USA, Inc. ("Defendant").

On January 8, 2024, Plaintiff filed a Complaint against Defendant, alleging causes of action for: (1) strict products liability; (2) breach of warranty; and (3) negligence products liability.

On November 20, 2025, Defendant filed a motion for summary judgment, or in the alternative, summary adjudication against Plaintiff.

On December 5, 2025, Plaintiff's counsel filed a motion to be relieved as counsel.

On December 30, 2025, the parties filed a joint stipulation to continue the hearing on this motion and trial to allow Plaintiff additional time to locate new counsel or handle the case pro per.

On January 25, 2026, the Court granted Plaintiff's counsel's motion to be relieved as counsel. The Court also granted the parties' joint stipulation and continued the motion for summary judgment to June 9, 2026, and continued trial to July 17, 2026.

Plaintiff, in pro per, filed an opposing declaration to the motion for summary judgment, arguing that he is unable to submit an opposition to the motion for summary judgment on its merits because he is not an attorney and lacks the legal training, technical resources, and expert relationships necessary to do so. Plaintiff attests that he has contacted more than 10 plaintiff's firms specializing in products liability and personal injury litigation, but none were able to undertake representation given the proximity of